Brazoria County District Court

Cause No. 2024-CV-0036

Sandra Dawson, Plaintiff, v. Harbor Point Mutual Auto Insurance, Defendant

Defendant's Original Answer

Date:	7-12-24
Counsel for defendant:	Richard Marshall, Ashford & Lyle LLP

Defendant generally denies each and every allegation contained in Plaintiff's Original Petition and demands strict proof thereof by a preponderance of the evidence, as required by the Texas Rules of Civil Procedure.

For further answer, and without assuming any burden of proof that Texas law places on Plaintiff, Defendant asserts the following affirmative defenses.

First, Plaintiff's own negligence caused or contributed to the collision. Plaintiff failed to keep a proper lookout, failed to confirm that the adjacent lane was clear before moving, and failed to yield the right-of-way as required by Texas Transportation Code Chapter 545. Under Chapter 33 of the Texas Civil Practice and Remedies Code, any recovery must be reduced by Plaintiff's percentage of responsibility, and Plaintiff may be barred entirely if that percentage exceeds fifty percent.

Second, the conduct of a third party, over whom Defendant had no control, was a proximate cause of the occurrence, and Defendant requests that the trier of fact consider that responsibility under Chapter 33.

Third, Plaintiff failed to mitigate damages by failing to follow reasonable medical advice and by incurring treatment that was unnecessary or not reasonable in cost, and any recovery must be limited accordingly.